

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI VS BALDI BROS., INC.	MOTION TO TAX COSTS

Tentative Ruling: Plaintiff's Motion to Tax Costs is denied.

Plaintiff brings this motion pursuant to Cal. Rules of Court ("CRC"), Rule 3.1700, which provides that a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of the mailing of the entry of judgment An extension for filing this document can be given by the court or through an agreement by the parties. "[T]he court may extend the times for serving and filing the cost memorandum or notice of motion to strike or tax costs for a period not to exceed 30 days." (*Id.* at (b)(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum. (CRC, Rule 3.1700(b)). Technically, a motion to strike challenges the entire costs bill whereas a motion to tax challenges particular items or amounts. But, the terms are often used interchangeably and there is no difference in the procedural rules. (CRC, Rule 3.1700(b).)

Unlike the costs memorandum, a motion to tax costs based on factual matters must be supported by declarations. (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) For instance, where "reasonableness" is challenged, conclusory allegations that the item was "neither necessary nor reasonable" do not satisfy the objecting party's burden. (*Id.*; *Jones, supra.* at 1266.) If the items on their face appear to be proper charges, the verified costs memorandum is prima facie evidence of their propriety, and the burden is on the opposing party to show that they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Jones, supra.* at 1266.)

Pursuant to CCP §1033.5(c)(1), certain items are allowable costs, including filing and motion fees, service of process fees, and deposition costs. Costs must be both reasonable in amount and reasonably necessary to the conduct of the litigation. (CCP §1032; §1033.5(c)(2) and (3).) To obtain a costs award, the prevailing party must serve and file a memorandum of costs. (CRC, Rule 3.1700(a).) Supporting documentation such as bills or invoices are not required, unless costs are put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.)

CCP §1033.5 also provides a lists of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically identified as prohibited, may be permitted at the Court's discretion. "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP §1033.5(c)(2).)

In ruling on a motion to tax costs, the court must first determine "whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable."

(*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Item No. 1 (Filing Fees):

Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Plaintiff challenges the entire amount of \$1,100.00 arguing that these costs were somehow duplicative of the costs claimed by the Individual Defendants. However, BBI points out in the Opposition that it was separately represented and its costs were separately incurred by BBI's counsel, not by the Individual Defendants. Plaintiff has no basis for its argument in that BBI was a separate defendant, which filed its own answer, jury fees, and MSJ making up the entire amount of \$1,100.00.

Item No. 11 (Court reporter fees):

CCP § 1033.5(b)(5) provides that transcripts of court proceedings not ordered by the court are not allowable as costs. (see also, *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 58 [court reporter fees are a different expense than transcripts].) BBI's MOC contains an amount for "Court reporter fees as established by statute" in the amount of \$4,051.22. Plaintiff challenges the entire amount on the same ground as asserted above regarding filing fees. However, BBI points out that court reporter fees were split 50/50 between Plaintiff and Defendants – Defendants then split their portion 50/50. The invoices were attached. (Dec.Seifen ¶¶ 5-8, Exs. "1" – "4".) As discussed above, Plaintiff has no basis for its argument claiming that BBI's costs are duplicative of the Individual Defendants.

Item No. 14 (Electronic filing and service fees): Under CCP § 1033.5(a)(14), "[f]ees for the electronic filing or service of documents through an electronic filing service provider [are recoverable] if a court requires or orders electronic filing or service of documents." (CCP § 1033.5(a)(14).) Plaintiff challenges \$212.24 claimed by BBI for this item. Plaintiff does not dispute that electronic filing was mandated, but contends that the fees are duplicative because the Individual Defendants may have already claimed them. However, BBI asserts that it was required to electronically file and serve its papers throughout this litigation and that the costs claimed are NOT duplicative nor do they overlap with those already sought by the Individual Defendants.

2.

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CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

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